

Court No. - 36

Case :- WRIT - C No. - 20484 of 2011

Petitioner :- M/S Bhadohi Hotels Ltd.

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Ajay Kumar Singh, Ashish Kumar Singh

Respondent Counsel :- H.P. Dube, A.N. Singh

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

The question involved in the present Writ Petition is regarding demand of Additional Security from the petitioner. The matter does not pertain to recovery matter.

Let it be placed before the appropriate Bench as a fresh, if possible, on 11.4.2011.

Order Date :- 7.4.2011

AKJ

Court No. - 3

Case :- WRIT - C No. - 20484 of 2011

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Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Ajay Kumar Singh, Ashish Kumar Singh

Respondent Counsel :- H.P. Dube, A.N. Singh

Hon'ble Amitava Lala, J.

Hon'ble Sanjay Misra, J.

Since the petitioner's contention is with regard to additional security only, several orders were passed in various writ petitions admittedly which are pending before this court and as per the statement of learned counsel appearing for the Corporation about five hundred matters are pending with such interim order.

We are of the view that this type of litigations cannot be kept pending indefinitely and are likely to be disposed of. Section 47 of the **Electricity Act 2003** is to be read with Clause 4.20 of the **U.P. Electricity Supply Code, 2005** in connection with the security and additional security.

The point has been agitated by the petitioner that if pre-paid scheme is provided no additional security is required to be paid to which the respondents' contention is that no pre-paid metre is available in the State.

However, we require counter affidavit to be filed by the respondents in this matter by 29.4.2011 along with all the connected matters. Rejoinder if any, be filed by 6.5.2011.

However, subject to furnishing security, other than cash and bank guarantee, to the satisfaction of the respondents, the interim order which is passed in earlier matters i.e ***Writ Petition No.9849 of 2011 (M/S Ideal Hotel and Industries Ltd. Vs. Purvanchal Vidyut Vitran Nigam Ltd. & others)***, ***Writ Petition No.57134 of 2010 (M/S Swarup Rolling Mills Limited Vs. Pvvnl and others)*** and ***Writ Petition No.52911 of 2010 (Singhal Galvanizing Industries Vs. Pvvnl and others)*** will continue in respect of the matter till further order or orders to be passed by the court.

Let the matter appear on 10.5.2011.

Order Date :- 15.4.2011

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Court No. - 29

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Petitioner :- M/S Bhadohi Hotels Ltd.

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- Ajay Kumar Singh, Ashish Kumar Singh

Counsel for Respondent :- H.P. Dube, A.N. Singh, S.C.

Hon'ble Tarun Agarwala, J.

Hon'ble Ashok Kumar, J.

The case is passed over on the illness slip of Sri A.N.Singh, the learned counsel for the respondents.

Order Date :- 4.8.2017

AKJ

(Ashok Kumar, J.)

(Tarun Agarwala, J.)

Court No. - 39

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Petitioner :- M/S Bhadohi Hotels Ltd.

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- Ajay Kumar Singh, Ashish Kumar Singh, Girish Kumar Gupta

Counsel for Respondent :- H.P. Dube, A.N. Singh, S.C.

Hon'ble Salil Kumar Rai, J.

Hon'ble Arun Kumar Singh Deshwal, J.

The issue raised in the present petition has already been decided by this Court vide its judgment and order dated 03.03.2023 passed in Writ C No.30898 of 2016 and the claim of the petitioner has been rejected by the aforesaid order passed by the Co-ordinate Bench of this Court.

In view of the aforesaid, the present petition is dismissed in terms of the order dated 03.03.2023 passed by this Court.

Order Date :- 19.5.2023

Vipasha